

NGHI DINH 145/2020/ND-CP - QUY DINH VE LAM THEM GIO (OT) VA NGHI PHEP HANG NAM

Metadata: customer_role=both

1. TINH TIEN LUONG LAM THEM GIO (OT - DIEU 98 BO LUAT LAO DONG 2019)

- Lam them gio vao ngay thuong: Duoc tra luong tinh theo don gia tien luong hoac tien luong thuc tra theo cong viec dang lam it
- Lam them gio vao ngay nghi hang tuan (cuoi tuan thu Bay, Chu Nhat): It nhat bang 200%.
- Lam them gio vao ngay nghi le, tet, ngay nghi co huong luong: It nhat bang 300% (chua ke tien luong ngay le, tet doi voi nguoi

2. TINH TIEN LUONG LAM THEM GIO BAN DEM (22H DEN 6H SANG HOM SAU)

- Lam viec vao ban dem: Duoc tra them it nhat 30% tien luong tinh theo don gia tien luong cua ngay lam viec binh thuong.
- Lam them gio vao ban dem: Ngoai tien luong lam them gio (150%, 200% hoac 300%), nguoi lao dong con duoc tra them 20%

3. GIOI HAN SO GIO LAM THEM GIO (OT)

- So gio lam them khong qua 50% so gio lam viec binh thuong trong 01 ngay.
- Tong so gio lam them khong qua 40 gio trong 01 thang va khong qua 200 gio trong 01 nam (truong hop dac biet do Chinh phu

4. NGHI PHEP HANG NAM (PHEP NAM - DIEU 113 BO LUAT LAO DONG 2019)

- Nguoi lao dong lam viec du 12 thang cho mot nguoi su dung lao dong thi duoc nghi hang nam huong nguyen luong: 12 ngay la
- Cu du 05 nam lam viec cho mot nguoi su dung lao dong thi so ngay nghi hang nam duoc tang them tuong ung 01 ngay.